THE STATE

Versus

LUCKMORE SIBANDA

And

BAFOWETHU NYONI

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 28 & 29 JULU 2025

Reasons for sentence

Mr K Jaravaza for the state
Mr T Mleya for the accused (for Mrs Drau)

NDUNA J: The two accused were arraigned before the court on one count of murder in contravention *of section 47 of the Criminal Law (Codification & Reform) Act [Chapter 9:23]*. They tendered pleas of not guilty to the charge but gave out that they are prepared to plead guilty to a charge of culpable homicide as defined in *section 49* of the same act. In turn the state accepted their limited plea to that offence. Therefore, the accused are hereby being sentenced to culpable homicide as pleaded by them.

It was the state's case that there was a fight which broke out at a beer drinking outlet. It is not very apparent as to how the deceased was stabbed and it is again not known as to who stabbed the deceased. However, the fact remains that the deceased was stabbed with a knife and he met his death. The conviction of the accused comes following a statement of agreed facts between the state and the defence counsel.

In *S v Wankie HH 831/15* it was proposed a very useful guidance which must be followed in sentencing offenders convicted of culpable homicide when it advocated for a proper assessment of an offender's degree of negligence in the commission of the crime. It put it thus:

> "The greater reason why the specific degree of negligence must be established in a charge of culpable homicide is for purposes of sentence. The more severe form of negligence there is the greater the penalty must be."

In this case the degree of negligence was indeed gross in that the accused took to street fighting over a woman. That could have been easily resolved by asking the said woman whom she preferred. In *S v Sahumani HH 454/20* the trial court reasoned that the sentence in every case where an offender has caused the death of another whether intentionally or negligently must reflect the abhorrence with which society views such conduct. She rounded off by suggesting a sentence in the region of fifteen years imprisonment.

In the case of *The State vs Godfrey Mutopa HB127/2017* an accused who was convicted of culpable homicide was sentenced to 4 years imprisonment which was wholly suspended for a father who had caused the death of his daughter because she had eaten ground nuts which was reserved for planting. This was after the father had disciplined the child through chastisement. He obviously did not expect the child to die as result.

Therefore, this is a very serious form of negligence with which the court is seized with, contrary to what the state believes. It was almost close to murder.

The accused persons as intimated above pleaded guilty to the offence. A guilty plea is a valuable contribution towards effective and efficient administration of justice. Whilst it does not serve to absolve the accused persons of the wrong that they did, it is something which will be rewarded. See *S v Dhliwayo 1999 (1) ZLR 229 (H).* However, in this case the state has advanced their position which advancement is to the effect that the accused persons should be treated with leniency. It has been proposed that an order for community service would be appropriate. The court tends to disagree with that part of their submission.

The *Sentencing Guidelines: Statutory Instrument 146/23* provides for a sentence of *5 years imprisonment and/or level 14* fine for an aggravated offence and *three years* for the other offence which bears no aggravation. The factors of aggravation that are listed are not present in this case. The factors listed in a mitigated offence are also not present in this case again. The court can take any factors in this offence which are aggravatory or mitigated even though such are not listed in the *Sentencing Guidelines*. The accused persons have pleaded guilty to the offence and are first offenders. These are generally facts which compels the court to treat the case with a measure of leniency. The accused

persons, it has to be stated; are also first offenders. That again calls for their treatment with a measure of leniency; but not enough to subject them to community service. A life was lost. Deaths are being caused by these youths hence the court must impose a sentence that sends the message clear that such unlawful conduct would not be tolerated by the courts.

The mother of the victim feels that the accused should be sentenced to prison. It then came out that they had been in custody prior to getting bail. Her attitude although she did not specify how long should be the prison sentence finds approval by the court. The accused must be sentenced to a prison term for the death they caused the victim of their attack.

The accused are accordingly sentenced each to, *4 years' imprisonment.*

National Prosecuting Authority, State's legal practitioners
Drau Law Chambers, accused's legal practitioners